

Naeem Beg v. Executive Engineer, Electricity Urban Distribution Division-IV, Dakshinanchal Electricity Distribution Corporation Ltd. and Another

High Court of Judicature at Allahabad · Single Judge (Court No. 33) · 5 November 2024 · WRIT - C No. 36015 of 2024 · Listed; connection abides by final writ; no suit benefit

HEADNOTE

Owner's writ against a Permanent Lok Adalat direction to grant a shop connection to the occupant. Prima facie, an indemnity bond under the U.P. Electricity Supply Code, 2005 may make the owner's consent unnecessary. Notice issued; any connection under the impugned order abides by the writ's final decision and gives the occupant no advantage in the pending ejectment suit.

FACTUAL SUMMARY

Naeem Beg claims to own a shop whose earlier electricity connection had been disconnected. The Permanent Lok Adalat directed the licensee to grant a connection to respondent no. 2 without hearing the owner. A civil suit for that occupant's ejectment was already pending and had been disclosed in the Lok Adalat's order. Beg filed this writ. On 5 November 2024 the Allahabad High Court issued notice to respondent no. 2, gave the licensee three weeks for a counter-affidavit, and listed the writ on 13 December 2024.

HOLDING-UNITS

HOLDING-UNIT · U.P. Electricity Supply Code, 2005

Owner consent where a connection is sought on an indemnity bond, and the interim effect of a connection granted while the writ is pending

HOLDING

Prima facie, where the U.P. Electricity Supply Code, 2005 allows a connection on an indemnity bond, the property owner's consent is not necessary. The writ was not decided: notice issued to respondent no. 2 and the licensee was allowed three weeks for a counter-affidavit. Any electricity connection granted under the Permanent Lok Adalat's order abides by this Court's final decision, and respondent no. 2 cannot claim any benefit from that connection in the pending ejectment suit. ¶ 1

FLAG The order names the U.P. Electricity Supply Code, 2005 and an indemnity bond but cites no clause number. The consent observation is expressly prima facie.

PRINCIPLE TAGS

UP-2005::indemnity-bond Prima facie, once the Supply Code permits a connection on submission of an indemnity bond, consent of the owner is not necessary. The Court did not finally decide the point. ¶ 1

connection-pending-writ-no-civil-benefit A connection granted under the impugned Lok Adalat order abides by this Court's final decision and confers no benefit on the occupant in the pending ejectment suit. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PERMANENT LOK ADALAT COULD DIRECT AN ELECTRICITY CONNECTION TO RESPONDENT NO. 2 WITHOUT HEARING THE OWNER

Left open. The Court recorded only a prima facie view that an indemnity bond may make the owner's consent unnecessary, and directed that any connection abide by the final decision in the writ. ¶ 1

NOT DECIDED — THE PENDING CIVIL SUIT FOR EJECTMENT OF RESPONDENT NO. 2

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.